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### Tentative Ruling

Re: **Stephanie Gonzales v. Rosa Calixto**  
Superior Court Case No. 26CU02131

Hearing Date: September 9, 2026 (Dept. 501)

Motion: Expedited Petition to Compromise Claim of Minor

### Tentative Ruling:

To deny the petition, without prejudice, for the reasons explained below. In the event that oral argument is requested the minor is excused from appearing.

**Explanation:**

According to the Petition, the minor has settled her claims for injuries received in the incident giving rise to the Complaint and is to receive a gross settlement of \$12,000 with the balance of the settlement after medical costs and attorney fees to be deposited in a blocked account.

The Petition at Item 9a indicates that the minor has recovered completely from her injuries, however, there is no doctor's report of the minor's condition reflecting that she has recovered. The only medical records provided are the emergency department records of the minor's initial treatment for her injuries. (Petn., Item 9a, Att. 9.) Additionally, Attachment 13a to the Petition identified Carelon as a lienholder but no medical record or evidence of medical bill for this provider has been provided with the Petition to support paying this entity from the minor's settlement.

The court issued an intended ruling on August 27, 2026 identifying these issues and allowing the filing of supplemental declaration in anticipation of the hearing set for September 9, 2026. No additional evidence has been provided to the court. Accordingly, the Petition is denied without prejudice.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

## Tentative Ruling

Issued By: KCK on 09/08/26  
(Judge's initials) (Date)

(46)

**Tentative Ruling**

Re: **Tejinder Sandhu v GK Orchards, LLC**  
Superior Court Case No. 25CECG03966

Hearing Date: September 9, 2026 (Dept. 501)

Motion: (1) by Cross-Complainants for Preliminary Injunction  
(2) By Cross-Defendants to Appoint Receiver

**Tentative Ruling:**

To deny the motion for preliminary injunction. To deny the motion for appointment of a receiver.

**Explanation:**

*Motion for Preliminary Injunction Preserving Disputed Portion of Excess Tax Sale Proceeds*

"This court has traditionally held that trial courts should evaluate two interrelated factors when deciding whether or not to issue a preliminary injunction. The first is the likelihood that the plaintiff will prevail on the merits at trial. The second is the interim harm that the plaintiff is likely to sustain if the injunction were denied as compared to the harm that the defendant is likely to suffer if the preliminary injunction were issued. [Citations.]" (*IT Corp. v. County of Imperial* (1983) 35 Cal.3d 63, 69-70.)

Here, cross-complainants do not demonstrate the required elements for a preliminary injunction. They submit that they "do not ask the Court to determine that they will prevail at trial" (Reply, 3:25), and thus the evidence provided is "sufficient" for the narrowed scope of the order sought. (Reply, 4:14.) Cross-complainants offer no authority to support this lessened standard. Cross-complainants still seek a preliminary injunction, thus the elements of a preliminary injunction must be fully addressed before a preliminary injunction may be granted.

*Motion for Appointment of Receiver*

Code of Civil Procedure section 564, subdivision (b)(1) provides for appointment of a receiver in actions between partners jointly owning in any property or fund when (1) the right to or interest in the property or fund is probable and (2) the property or fund is in danger of being lost, removed, or materially injured. Appointment of a receiver is to be "exercised with caution." (*Cohen v. Herbert* (1960) 186 Cal.App.2d 488, 495.) That said, appointment of a receiver is discretionary. (*Maggiore v. Palo Alto Inn, Inc.* (1967) 249 Cal.App.2d 706, 710.)

Here, the right to or interest in the property is heavily disputed. Cross-defendants seek appointment of a receiver over the entire property on the basis that cross-complainants have been derelict in the physical and financial maintenance of the

Cross-defendants support their claim of unpaid vendors by attaching a judgment and abstract of judgment against GK Orchards. The connection between the judgment and vendor work on the property is assumed, not demonstrated. Cross-complainants alleged vandalism has not been evidenced, and cross-complainants similarly accuse cross-defendants of acts of interference. The declaration of Tejinder Pal Sandhu further provides evidence of his property tax payments. This in itself does not demonstrate total taxes owed and paid/unpaid by each party, i.e. whether he is paying his full share or that cross-complainants are not paying at all. Cross-defendants also include a demand letter for collection of an outstanding PG&E bill. The demand is made as to Tejinder Pal Sandhu only. Mr. Sandhu attests that "defendants refuse to pay any share of that even though they are the ones using the water." (Sandhu Decl., ¶ 16.) This is not evidence of cross-complainants failing an obligation, as it appears the debt belongs to Mr. Sandhu and no evidence obliging the cross-complainants to assist in payment is demonstrated.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

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